

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 10-cv-00309-CBS-BNB

KIMBERLY N. SQUIRES,

Plaintiff,

v.

BRECKENRIDGE OUTDOOR EDUCATION CENTER,

Defendant.

FINAL JUDGMENT

PURSUANT to and in accordance with Fed. R. Civ. P. 58(a) and the orders entered during the course of proceedings in this case, the following FINAL JUDGMENT is entered.

I. Pursuant to the Memorandum Opinion and Order (Doc. #120) entered by Magistrate Judge Craig B. Shaffer on November 8, 2011, which order is incorporated by reference,

IT IS ORDERED that Defendant BOEC's Motion for Summary Judgment (filed December 3, 2010) (Doc. #52) is GRANTED IN PART AND DENIED IN PART. The Fifth Claim for Relief in the Second Amended Complaint (Doc. #13) shall proceed against Defendant Breckenridge Outdoor Education Center only on the alleged willful and wanton, reckless, or grossly negligent acts or omissions.

II. This matter proceeded to trial before a jury of eight, duly sworn, commencing on March 26, 2012 and concluding on April 5, 2012, before U.S. Magistrate Judge Craig B. Shaffer. Pursuant to the verdict of the jury [#277-1] filed April

5, 2012, the jury found that Plaintiff Kimberly Squires did have injuries. The jury further found that Defendant, Breckenridge Outdoor Education Center did not engage in reckless conduct. Accordingly, It is

ORDERED that final judgment is hereby entered for the Defendant Breckenridge Outdoor Education Center and against Plaintiff Kimberly Squires.

It is further ORDERED that the defendant is AWARDED its costs, to be taxed by the Clerk of the Court pursuant to Fed. R. Civ. P. 54(d)(1) and D.C.COLO.LCivR 54.1.

DATED at Denver, Colorado, April 12, 2012.

FOR THE COURT:

Gregory C. Langham, Clerk

By s/ Edward P. Butler

Edward P. Butler
Deputy Clerk